



**IN THE HIGH COURT OF KARNATAKA,
KALABURAGI BENCH**

DATED THIS THE 4TH DAY OF DECEMBER, 2025

BEFORE

THE HON'BLE MRS JUSTICE P SREE SUDHA

MISCL. FIRST APPEAL NO. 201137 OF 2018

C/W

MISCL. FIRST APPEAL NO. 200544 OF 2018

BETWEEN:

SMT.MANJULA
W/O SHARNAPPA DHARMSHETTY
AGE:43 YARS, OCC:ASST. TEACHER AT MALGHAN,
R/O PLOT NO.270, VEERENDRA PATIL NAGAR,
SEDAM ROAD, KALABURAGI.

...APPELLANT

(BY SMT. SRIDEVI J TUPPAD, ADVOCATE)

AND:

1. ZAKIR HUSSAIN S/O MASTAN SAB,
AGE:MAJOR, OCC:NOT KNOWN, OWNER OF VEHICLE,
MARUTI RITZ CAR NO.KA-32/N-3801,
R/O H.NO.7-964/1/20/M,
GESUDARAJ COLONY, KALABURAGI - 585104.
2. THE MANAGER,
RELIANCE GENERAL INSURANCE CO. LTD.
DIVISIONAL OFFICE,





NC: 2025:KHC-K:7487
MFA No. 201137 of 2018
C/W MFA No. 200544 of 2018

ASIAN PLAZA,
NEAR TIMMAPURI CIRCLE,
KALABURAGI – 585 102.

...RESPONDENTS

(BY SMT. PREETI PATIL MELKUNDI, ADVOCATE FOR R2;

VIDE ORDER DATED 27.03.2023, NOTICE TO R1 IS
DISPENSED WITH)

THIS MFA IS FILED U/S. 173(1) OF MV ACT, BY THE
ADVOCATE FOR APPELLANT PRAYING THAT THIS HON BLE
COURT MAY BE PLEASED TO- a) TO EXERCISE ITS APPELLATE
JURISDICTION, CALL FOR THE ENTIRE RECORDS AND MODIFY
THE JUDGEMENT AND AWARD DATED-16.01.2018 PASSED BY
THE LEARNED PRINCIPAL SENIOR CIVIL JUDGE AND MACT AT
KALABURAGI IN MVC NO.1074/2015 BY ENHANCING THE
COMPENSATION AMOUNT FROM RS.84,585/- TO
RS.15,00,000/-, IN THE INTEREST OF JUSTICE AND EQUITY.

IN MISCL. FIRST APPEAL NO. 200544 OF 2018

BETWEEN:

THE MANAGER,
RELIANCE GENERAL INSURANCE CO. LTD.,
DIVISIONAL OFFICE,
ASIAN PALAZA, NEAR TIMMAPURI CIRCLE,
KALABURAGI.

NOW REPRESENTED BY AUTHORIZED SIGNATORY
KALABURAGI

...APPELLANT

(BY SMT. PREETI PATIL MELKUNDI, ADVOCATE)



AND:

1. MANJULA W/O SHARNAPPA DHARMSHETTY,
AGE:43 YEARS,
OCC: GOVT. SERVICE AS ASST.
TEACHER AT MALGHAN,
R/O PLOT NO.270,
VEERENDRA PATIL BADAVANE,
SEDAM ROAD, KALABURAGI-585101
2. ZAKIR HUSSAIN S/O MASTAN SAB,
AGE:MAJOR, OCC: NOT KNOWN,
OWNER OF MARUTI RITZ CAR BEARING
REGN.NO.KA-32/N-3801,
R/O:H.NO.7-964/1/20/M,
GESUDARAJ COLONY, KALABURAGI-585101

...RESPONDENTS

(BY SRI SANJEEV PATIL, ADVOCATE FOR R1;

VIDE ORDER DATED 09.01.2025, NOTICE TO R2 IS
DISPENSED WITH)

THIS MFA IS FILED U/S 173(1) OF MV ACT, BY THE
ADVOCATE FOR APPELLANT, PRAYING THAT THIS HON BLE
COURT MAY BE PLEASED TO,CALL FOR THE RECORDS AND
ALLOW THE ABOVE APPEAL BY SETTING ASIDE THE IMPUGNED
JUDGMENT AND AWARD DATED-16.01.2018 IN MVC
NO.1074/2015 PASSED BY THE PRL. SENIOR CIVIL JUDGE
AND MACT AT KALABURAGI, IN THE INTEREST OF JUSTICE
AND EQUITY.

THESE APPEALS, COMING ON FOR FINAL HEARING, THIS
DAY, JUDGMENT WAS DELIVERED THEREIN AS UNDER:

CORAM: HON'BLE MRS JUSTICE P SREE SUDHA



ORAL JUDGMENT

(PER: HON'BLE MRS JUSTICE P SREE SUDHA)

These two appeals are filed against the Judgment and award in MVC No.1074/2015 dated 16.01.2018 passed by the Court of Prl. Senior Civil Judge and MACT, Kalaburagi (for short 'the Tribunal').

2. Injured/claimant aged 40 years, working as an Assistant Teacher in Government school, met with an accident on 01.08.2014 and filed a claim petition claiming compensation of Rs.15,00,000/-. The Tribunal after considering entire material on record, granted an amount of Rs.84,585/- with interest at the rate of 6% p.a from the date of petition till realization.

IN MFA NO.201137/2018

3. Aggrieved by the said order, the injured/claimant preferred this appeal in which it is contended that, meager amounts are granted for pain and suffering, loss of amenities and also medical expenses and



no amounts granted for other heads. Thus, requested for enhancement of the compensation.

IN MFA NO.200544/2018

4. Insurance company also preferred this appeal in which it is contended that, the Insurance Company has issued notice to the owner of the vehicle and requested him to furnish the copy of driving licence, but, he failed to do so. As such, an adverse inference was drawn against him for violation of terms and conditions of the policy. Thus, requested for pay and recovery.

5. It is further contended by the Insurance Company that, appellant has not examined the doctor to show that she sustained grievous injuries. Further, though there are no medical documents to show her medical expenses to an extent of Rs.33,585, the Tribunal erred in granting the said amount. Therefore, requested for modification of the order.

6. Heard the arguments of both sides.



7. Appellant/claimant was aged 40 years, working as Assistant Teacher in Government School in Malghan and getting a salary of Rs.28,944/- per month. But, the salary slip is not filed before the Court to prove her income. She met with an accident on 01.08.2014, therefore, this Court finds it reasonable to take her notional income as Rs.7,500/- per month, as per the guidelines of Karnataka Legal Services Authority. She was hospitalized for 2 days and she filed the medical bills under Ex.P5 for an amount of Rs.33,585/-. As per the Wound Certificate, filed under Ex.P5, claimant sustained dentoalveolar fracture of upper anterior teeth and other injuries over face, on upper and lower lip, chin, near left eye, on head, left knee and on other parts of the body, which are grievous in nature. As per discharge summary – Ex.P7, she was admitted on 01.08.2014 and discharged on 03.08.2014. She has sustained injury over face on upper and lower limb. Appellant/claimant has not examined the



doctor, as such, the question of assessing the disability or granting future earning capacity does not arise.

8. In view of the above discussion, considering the nature of injuries, this Court finds it reasonable to award an amount of Rs.22,000/- under the head Injuries.

9. The Tribunal granted Rs.40,000/- for pain and suffering, Rs.10,000/- for loss of amenities and Rs.33,585/- for medical expenses and it needs no interference and this Court finds it reasonable to grant an amount of Rs.30,000/- for extra nourishment, transportation and attended charges.

10. She might not have attended any other work at least for a period of two months, therefore, Rs.15,000/- (7,500 x 2) towards loss of income during laid up period.

11. In all, the total compensation comes to Rs.1,50,585/- with interest at the rate of 6% per annum from the date of petition till realization.



12. The Tribunal held that respondent Nos.1 and 2 are jointly and severally liable to pay the compensation and directed the Insurance Company to deposit the amount. But as per the contention of the Insurance Company, there is no driving license, as such, no amount was deposited till today. Hence, this Court finds it reasonable to direct the Insurance Company to deposit the compensation with interest.

13. The compensation awarded by the Tribunal is modified as under:

Heads	Amount in Rs.
1. Injuries	22,000/-
2. Pain and suffering	40,000/-
3. Loss of amenities	10,000/-
4. Medical expenses	33,585/-
5. Transportation, extra nourishment and attendant charges	30,000/-
6. Loss of earning during laid up period for two months	15,000/-
Total	1,50,585/-



Accordingly, the appellant is entitled for a total compensation of **Rs.1,50,585/-** as against Rs.84,585/-.

14. In the result, the following order is passed:

- i) Both appeals are ***partly allowed***;
- ii) The appellant/claimant is entitled for total compensation of Rs.1,50,585/- with interest at 6% per annum from the date of petition till realization.
- iii) Insurance Company is directed to deposit Rs.1,50,585/- with interest at the rate of 6% within 1 month from the date of this order and at liberty to recover the same from the owner of the vehicle.
- iv) On such deposit, claimant/appellant is permitted to withdraw the entire amount along with interest accrued on it.

sd/-
(P SREE SUDHA)
JUDGE